Loss of a Chance in the Law of Tort

An introductory guide to causation in England and Wales. Why losing a possibility is not always treated in the same way as causing the final injury.

1. Losing a result or losing an opportunity?

A patient receives a late diagnosis. Timely treatment might have prevented serious harm, but nobody can say that it probably would have done so. The patient asks: “Even if I cannot prove that the delay caused the final outcome, did it take away something valuable - my chance of a better outcome?” This is the central problem of **loss of a chance**.

The ordinary **but-for test** asks whether the same damage would have occurred without the defendant's breach. In an ordinary negligence claim, the claimant must prove causation on the **balance of probabilities**: more likely than not. This is the normal civil standard; it does not require certainty.

> **Keep two questions separate:** Did the negligence cause the final injury? Or did it cause the loss of an opportunity which the law recognises as a compensable loss? Calling something a “chance” does not itself establish a right to compensation.

2. What does “all or nothing” mean?

For the ordinary causation issue, the court decides whether the necessary connection has been proved. It does not normally award 30% of the damages for an injury simply because there is a 30% probability that the defendant caused it. The expression concerns proof of this connection; it is not a rule that every damages calculation ignores uncertainty.

3. Not every lost chance follows the medical rule

Some lost litigation or commercial opportunities can be valued as chances. The claimant must ordinarily prove what they themselves would have done; a favourable response by an independent third party may instead be assessed as a real and substantial chance. A merely speculative possibility is insufficient. [3]

Invented example: a solicitor negligently misses a deadline, destroying an existing claim. The lost claim may have value even though success was uncertain. This does not mean that every missed medical opportunity is valued in the same way.

Claimant: person bringing the claim. **Defendant:** person or body sued. **Actionable damage:** harm recognised as a basis for the claim. **Prospect:** chance of a future or hypothetical outcome.

Hotson and the injured hip

Hotson v East Berkshire Area Health Authority [1987] AC 750

A boy fell from a tree and injured his hip. The hospital negligently failed to diagnose the fracture for five days. He subsequently suffered lasting damage associated with loss of blood supply to the hip joint. [1]

4. Why did the figure of 25% matter?

The trial judge found that the fall had probably already made the permanent damage inevitable. The remaining 25% represented the possibility that enough blood vessels had survived for prompt treatment to save the joint. The trial court awarded a proportion of damages on that basis; the Court of Appeal upheld it. [1]

> **Who won, and why?** The health authority won its House of Lords appeal on the permanent hip damage. The finding, on the balance of probabilities, was that the fall had already made that damage inevitable. The award for the supposed lost 25% chance did not stand. [1]

5. A past fact is not automatically a lost asset

The critical question concerned the boy's actual physical condition after the fall and before the negligent delay. Were enough blood vessels still intact, or not? The court had to determine that past fact using the ordinary standard of proof. It was not deciding the value of an opportunity to persuade an independent third party.

Do not turn the result into “a 25% chance is always worthless”. The point is how the law identifies the damage and resolves the causal issue in this case. A numerical possibility of a different past condition did not become a separate compensable opportunity merely because the evidence was uncertain.

6. Apply the reasoning to a new example

Invented example: a climber damages a finger in a fall. A clinic then negligently delays assessment. Suppose the court finds that the fall had already destroyed the tissue irreversibly and timely care would not have saved it. The delay does not cause that irreversible loss under the ordinary test.

Now change the facts: reliable evidence establishes that prompt care would probably have saved the finger. That supports ordinary causation. The different result comes from different evidence about preventability, not merely from calling the harm a lost chance.

Keep the damage precise. Failure to prove that a delay caused permanent disability does not, by itself, decide whether the delay caused a different injury, such as additional pain. That would require its own evidence and analysis.

Gregg and the chance of survival

Gregg v Scott [2005] UKHL 2

Dr Scott negligently treated a lump under Mr Gregg's arm as harmless. It was cancer. Treatment was delayed by about nine months. His estimated prospects of ten-year disease-free survival fell from 42% to 25%. Mr Gregg was still alive when the House of Lords heard the case. [2]

7. What was the proposed loss?

The argument sought compensation for the reduced chance of long-term survival without proving that timely treatment would probably have secured the better outcome. The numerical reduction was **17 percentage points**: 42 minus 25. It was not a guaranteed cure lost, and a 25% prospect remained.

> **Who won, and why?** Dr Scott won: the House of Lords dismissed Mr Gregg's appeal by a majority of three to two. The majority declined to recognise the reduced survival prospect as a separately compensable loss in this medical claim where the conventional causal requirements were not met. [2]

8. Understand the disagreement

The minority favoured recognising the lost medical prospect as valuable in itself. The majority resisted a broad move from probable causation to compensation for possible causation, stressing coherence with existing rules and the scale of the proposed change. A **dissent** is a judge's disagreement with the majority; it does not determine the court's result. [2]

It is therefore misleading to explain the decision only through fear of too many lawsuits. **Floodgates** describes concern about a large expansion of claims, but the legal problem also concerns what counts as damage and how causation must be established.

9. Read percentages carefully

A 42% prospect of surviving disease-free for ten years is not a promise of a complete and speedy recovery. Nor is it automatically a 42% probability that the doctor caused an injury. Prognosis describes a possible health outcome; the court must still analyse the alleged breach and the particular damage.

Invented contrast: losing a 35% chance that a buyer would accept a proposed commercial term may raise a lost-opportunity valuation question. A 35% prospect of avoiding a medical outcome does not automatically attract the same treatment. Identify the legal category before multiplying a percentage by a financial figure.

Material contribution and the Fairchild exception are separate causation doctrines. They are not general devices for turning every uncertain medical claim into a proportionate loss-of-chance award.

Check your understanding

1. What is the ordinary civil standard for proving causation?
Answer: The balance of probabilities: more likely than not. It does not require absolute certainty.

2. Does any lost possibility automatically count as compensable damage?
Answer: No. The law must recognise the opportunity as a compensable loss, and the relevant requirements must be established.

3. Who won Hotson on the permanent hip damage?
Answer: The health authority. The fall had probably already made that damage inevitable, so the lost-chance award was reversed.

4. In Gregg, what did 42% and 25% describe?
Answer: Estimated prospects of ten-year disease-free survival. The reduction was 17 percentage points; it was not a guarantee of cure.

5. Did Mr Gregg win because some chance had certainly been reduced?
Answer: No. Dr Scott won the appeal, by three to two. The majority rejected the loss-of-chance route advanced in this medical case.

6. A solicitor loses a claim with a real 40% prospect of success. Is it automatically worthless because it falls below 50%?
Answer: No. A lost litigation opportunity may be valued as a chance, subject to proof of the necessary requirements.

7. A patient proves that a negligent delay caused three extra weeks of pain. Must that be analysed as loss of a chance?
Answer: No. It may be an ordinary claim for a proved additional injury. Identify that damage separately from uncertain long-term outcomes.

Primary sources

Practice examples are invented. Sources checked 19 October 2026. This guide concerns England and Wales.

[1] *Hotson* [1987] AC 750, explained in *Gregg* [2005] UKHL 2, paras 74-75. Read the judicial account

[2] *Gregg v Scott* [2005] UKHL 2, paras 5-7, 78-91 and 92: facts, majority reasoning and dissent. Read judgment

[3] *Perry v Raleys Solicitors* [2019] UKSC 5, paras 19-25 and 34-37: proof of the claimant's conduct and valuation of lost opportunities. Read judgment